Form No: HCJD/C-121

ORDER SHEET

IN THE LAHORE HIGH COURT,
RAWALPINDI BENCH, RAWALPINDI
(JUDICIAL DEPARTMENT)

Case No. Crl.Misc.No.3303-M of 2024

Muhammad Zareen **Versus** *Learned Addl: Sessions Judge, etc.*

Sr.No.of order/ Proceedings	Date of order/ Proceedings	Order with signatures of Judge, and that of parties or counsel, where necessary.

11.10.2024 Mr. Haider Mehmood Mirza, Advocate for the petitioner.

Muhammad Zareen *(petitioner herein)* has filed instant application under section 561-A of Cr.PC to impugn order dated 27.05.2024 and judgment dated 27.09.2024 passed by learned Senior Civil Judge (Criminal Division), Jhelum and learned Additional District Judge, Jhelum respectively, whereby application for exhumation of dead body of Mst. Maryam Zareen filed by Adil Hussain *(respondent No.4 herein)* was accepted and revision petition filed by the petitioner against the said order was dismissed.

2. Heard learned counsel for the petitioner and record so annexed with the petition perused.

3. It has straightaway been observed that respondent No.4 has raised serious suspicion qua alleged unnatural death of her sister namely Mst. Maryam Zareen. Respondent No.4 who is real brother of deceased Maryam Zareen had a right to get his suspicion removed qua administering poison to her sister by the petitioner. Guidance has been sought from the case reported as *"Ameer Afzal Baig v. Ahsan Ullah Baig and others"* **(2006 SCMR 1468),** wherein it was observed that the legal heir had a right to get the

suspicion removed, more particularly, when exhumation by itself could never lead to involvement of someone unless postmortem is conducted and report is positive. It may further be observed that exhumation and thereafter post-mortem examination merely are the tools to unearth the real cause of death of deceased. So far as submission of learned counsel for the petitioner that in case of disinterment/exhumation, dignity and sanctity of grave would be violated is concerned, it may be observed that life is a sacred right of human being and same has been recognized, safe-guarded and protected as a fundamental right and if this right is violated or transgressed upon, law of land comes into motion to deal with the offender, therefore, in order to uncover the fact as to whether one met natural or unnatural death particularly where a doubt has been created in the mind of real brother of the deceased, it is rather more sacred and necessary for the sake of justice justifying disinterment of the dead body. Mere fact that dead body had already been buried and its exhumation may cause disrespect to the dead body, in no way be counted as a good and valid ground to deny the request of disinterment particularly where disinterment is necessary to advance the cause of justice. In the instant case respondent No.4 who is real brother of deceased was justified in making application for exhumation of her daughter so as to know the cause of her death. Both the courts below have rightly proceeded in the matter and accepted the petition filed by respondent No.4. Learned counsel for petitioner remained unable to point out even a single circumstance from where it can remotely be ascertained that learned courts below

while passing the impugned order/judgment have acted either without jurisdiction or the impugned order and judgment have been passed in violation of any law. Learned counsel for the petitioner failed to point out even single circumstance of any patent illegality or jurisdictional defect in the impugned order/judgment. No case warranting any interference in the impugned order/judgment at all is made out.

4. The upshot of above discussion is that petition in hand is devoid of any force, therefore, the same is dismissed *in limine*.

(Shakil Ahmad)
Judge

*Mohsin Raza**

Approved for reporting

Judge